MATTER 20 — REMEDY-FOCUSED WRIT RESEARCH MEMORANDUM

Newanforbi v. California Highway Patrol, et al. · Alameda Superior Court No. 26CV191136 · October 24, 2026

Purpose. Privileged-style working research for self-represented petitioner; not a pleading, expert opinion, or representation that the Court has found any disputed fact. This memorandum examines the uploaded **Matter20_Merged_v3.pdf** (87 pages; cited as **M**) and **Newanforbi_26CV191136_Writ_Motion_Packet.pdf** (30 pages; cited as **W**), supplemented by independently checked statutes and reported decisions. It is advocacy-oriented but does not attribute undisclosed thoughts or unsupported wrongdoing to Serrato. Document-page citations are PDF page numbers, not underlying pleading page numbers. Authorities are collected with working links in §11 and the final appendix.

1. Recommended remedial theory and merits assessment

Lead with the statutory right to a lawful victimhood determination, not with the length of the denial. California expressly enumerates false imprisonment and unlawful criminal restraint as qualifying activities, creates a conditional statutory duty to certify, and presumes helpfulness when the victim has not failed to provide reasonably requested assistance. Penal Code §679.10(c)(18)-(19), (g)(1), (h), (k)(1). The April 20 letter rejected qualifying and substantially similar activity; it did not say petitioner was unhelpful. CHP admits receipt of the April 9 request packet and the denial. **M2, M4, M12-13**; **W4-6**. The superior court's surviving task is to determine whether that substantive rejection constituted reviewable abuse or legal error, then select relief justified by adjudicated facts.

Tier 1—direct certification: legally possible if the court determines the facts establishing qualifying criminal victimhood, helpfulness, and all other certification conditions, and finds only one lawful outcome. See *California Correctional Supervisors Organization, Inc. v. Department of Corrections* (2002) 96 Cal.App.4th 824, 827. **On the supplied record, this result is not presently conclusively proved.** The arrest-related reports allege multiple impairment indicators, and the native dashcam is not included in either PDF.

Tier 2—vacatur and controlled remand: viable only upon an actual finding that CHP used an erroneous statutory test, relied on a demonstrably material factual error, disregarded competent relevant evidence in a legally abusive manner, or reached a determination outside permissible discretion. A short denial, no DUI charges, and a later detention certificate do not independently prove abuse. *Saleeby v. State Bar* (1985) 39 Cal.3d 547, 560–563.

Tier 3—focused merits factfinding: a useful bridge, not a third substantive cause of action. The authenticated video, accurate reconstruction of the field-test chronology, objective prearrest observations, CHP's contrary records, and what formed the factual basis of certification can be determined under ordinary evidentiary rules. Code Civ. Proc. §§1090, 1091, 1094; *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 575–576.

The motion packet already asks for remand first and direct certification conditionally (**W2, W13**); the requested research hierarchy would elevate **direct certification in the prayer as a**

conditional primary request, make **remand the executable alternative**, and **retain a further-hearing fallback**. The narrative should not suggest direct relief is currently established by undisputed evidence.

2. Best route to direct certification

The shortest possible findings chain is: **(1)** CHP is a certifying entity and Serrato an authorized official (expressly admitted, **M3–4**); **(2)** petitioner was intentionally detained and transported against his will (CHP Answer ¶¶38–41; **M8–9**; petitioner declaration, **W15–18**); **(3)** no objectively lawful authority supported that custodial restraint after applying the contemporaneously applicable DUI and warrantless-arrest standards; **(4)** the unlawful personal restraint constituted Penal Code §236 or a qualifying substantially similar offense, and directly harmed petitioner; **(5)** petitioner possessed incident information and satisfies §679.10(g)–(h) helpfulness, with no proven refusal to furnish reasonably requested assistance about the alleged officer offense; **(6)** no unresolved statutory predicate or lawful basis for refusal remains.

One must not assert that a judicial finding of a prior criminal conviction or officer prosecution is required. Section 679.10(k)(1) expressly rejects those prerequisites, and U certification is distinct from USCIS's adjudication of status. Conversely, the words "shall certify" do not eliminate a genuine threshold evaluation of qualifying victimhood.

What would change the evidentiary posture: a custodian-authenticated original dashcam, a precise ruling rejecting report descriptions materially necessary to probable cause, findings on Vehicle Code §40300.5's alternatives, affirmative proof of the April decision's materially false predicate, and a finding that no remaining reasonable route sustains the no-qualifying-crime conclusion. Declarations and admissions may narrow issues; they do not automatically establish the disputed officer-sensory observations. Prove objective elements, not motive or presumed disciplinary findings.

3. Best route to vacatur and controlled reconsideration

Request that the court identify **the specific material error it actually finds** (for example, a false factual premise that petitioner refused the walk-and-turn because it was difficult **if that premise actually influenced a legally material custody determination**). It may then vacate the April denial, order decision on the April 9 application under §679.10(c), (d), (g), (h), (i)(2), and (k), prohibit reliance on the adjudicated error, and require reconsideration and a verified return by dates set in the judgment. Do not ask for a generalized "give it a more thorough review" order untethered to established legal error.

Proof gap: RFP No. 8 expressly seeks the original April 9–20 non-Pitchess decision file; the October 20 response promises nonprivileged documents that exist but does **not** affirmatively identify what Serrato read or explain the merits basis of the denial. **M30–31**. The October 23 privilege log contains 15 listed items, with May 9 interview/video memos **after** the challenged April decision; those dates alone prove no earlier review or prohibited motive. **M69–71**. Separate discovery or appropriately limited evidentiary proof should resolve the April-decision nexus before representing it as fact.

On remand the court can bind CHP to **the law** and **its adjudicated findings**, while leaving unresolved credibility and threshold choices to the authorized official. That preserves the line recognized in *Saleeby* and *California Correctional Supervisors Organization*.

4. Required statutory findings—§679.10 matrix

Element	Record showing	Unresolved proof
Authorized entity and official	CHP admits both. **M3–4, Answer ¶¶13–14.**	None material to these predicates.
Direct victim of qualifying §236 offense	Physical custody admitted; §236 expressly enumerated; **M8–12**, Penal Code §679.10(c)(19).	Whether restraint lacked legal authority and constituted **criminal** rather than merely disputed civil conduct.
Unlawful criminal restraint or §146(a) similar offense	Officer commands, cuffs and incarceration; §146(a) expressly criminalizes color-of-authority unlawful detention.	Elements of §146(a) and **element-by-element** similarity under §679.10(d); do not simply label all §146 arrests U-visa offenses.
Helpfulness	CHP/POST complaints and April request with transcript/report; **M2, M11–13**, **W17–18**.	Any genuinely reasonable, communicated request to assist with alleged officer wrongdoing and any actual failure.
No prohibited criterion	Statute forbids rejection for separate-case cooperation and absence of charges.	The April denial **does not facially invoke** either; no proof Serrato secretly relied on them.
Timing and written decision	April 9 request, April 20 denial; 11 days, within ordinary 30-day rule. **M2, M12–13**.	Exact signed denial omitted as standalone page from these two merged exhibits; check original petition exhibit.

Citation correction: written denial is §679.10 **(i)(2)**, not (g). The text requires written explanation and detailed description **of requests and failures to cooperate, if asserted**; it does not expressly require a full criminal-elements memorandum when denial rests on victimhood. The stand-alone reasons theory was dismissed according to the motion's characterization of the August 29 order; **that underlying court order itself is not included in these two supplied PDFs** and must be inspected before stating its exact disposition. The 30-day processing rule is §679.10(j)(1), not evidence of delay here. Section §679.10(o) defines direct victims as directly harmed.

5. False-imprisonment and color-of-authority elements

Use **CALCRIM No. 1242 (2026)**, *People v. Agnew* (1940) 16 Cal.2d 655, 659–660, *Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 715–716, and Penal Code §236. Misdemeanor false imprisonment requires intentional restraint/detention or confinement causing a person to remain or go somewhere against their will; where lawful authority is contested, unlawfulness must be proved. It is a **general-intent** offense. Do **not** graft onto misdemeanor §236 a requirement to prove felony violence/menace, personal malice, fraud, criminal prosecution, or a prior conviction.

Intentional restraint: strong, essentially undisputed. CHP admitted the arrest, handcuffs, transport, and November 1–5 custody (**M8–11**, Answer ¶¶38–42). Against-will evidence is in **W16–18**. **No-lawful-authority element:** actively disputed. The Form 202 in **M42–46 (AGO 000029–000033)** reports HGN, Romberg, odor, slurring, red/watery eyes, earlier driving, can, PAS refusal; several are challenged, but not all are disproved by silence in audio. Absence of charges and §851.6 classification prove neither contemporaneous no probable cause nor criminal guilt. The evidentiary inquiry must decide what was known and legally sufficient **when custodial restraint occurred**.

§146(a) expressly covers a public officer arresting or detaining another against their will **without regular process or other lawful authority**. Its color-of-authority feature is supported by CHP uniforms, report and commands, but unlawful authority is unresolved. Treat it as an **alternative overlapping offense** only if a supported element-comparison under §679.10(d) identifies substantial similarity to listed false imprisonment/unlawful criminal restraint. A search without consent is not itself the listed offense; preserve the initial entry as timing/context if needed.

Civil-immunity caution: Penal Code §847(b) is limited by its own terms to **civil liability** for false arrest/imprisonment; do not misstate it as universal criminal immunity. It may inform the objective lawful-authority dispute, not erase §236 or §146. A U-certification decision is not a tort-damages judgment.

6. Material-factual-error audit—walk-and-turn and chemical-test chronology

Primary contradiction (source-specific): officer's actual scanned Form 202 states that petitioner "chose not to perform" the **walk-and-turn** because difficult, while separately describing earlier one-leg-stand nonperformance. **M44 (AGO 000031, entries 16–20)**. The 15-page petitioner-prepared transcript says at **01:10:23** that he thought he could attempt the walk-and-turn, then records Officer Melano advising not to administer it due to uneven shoulder terrain at **01:10:25–30**. **M81 (transcript printed p.9)**. If native video corroborates the exchange, petitioner did not decline that test solely due to difficulty; this is a pinpointable inaccuracy. Do not claim this proves the completed HGN or Romberg observations were fabricated, or that the officers had no other basis for custody.

Second discrepancy worth investigating: CHP's verified Answer ¶38 refers to an initial refusal of a **chemical breath/blood** test preceding arrest. **M8–9**. The petitioner-prepared transcript instead has a prearrest **voluntary roadside PAS** at **01:10:33–01:11:15**, cuffs at ~01:11:33, and a **post-arrest** inquiry about choosing chemical breath versus blood at

~**01:15:54**. **M82–83 (transcript pp.10–11)**. This is an apparent mismatch between the verified Answer's chronology and the transcript, not conclusive proof of deception; the native footage and the precise reporting language must resolve whether the Answer compressed or confused distinct tests. Its strongest utility is objective chronology and identification of which test was purportedly refused before custody.

Materiality sequence for judge: (a) find exact words/events from authenticated video; (b) compare sworn report and Answer; (c) determine whether misattributed test nonperformance was used as an adverse field-sobriety indicator; (d) reevaluate all remaining prearrest lawful-authority facts; (e) determine whether changed factual conclusions render the **April qualifying-victimhood decision untenable**, or at least disclose a materially erroneous factual basis in it. The fourth and fifth steps cannot be skipped. There is **no proved direct causal link yet** between Serrato's internal reasoning and the later October Answer's apparent test-description error.

7. Focused probable-cause and warrantless-arrest analysis

DUI suspicion versus driving in presence. CHP admits the car was stationary and contact was welfare-related (**M7–8, Answer ¶¶34–35**). *Mercer v. DMV* (1991) 53 Cal.3d 753, 768–769 explains the volitional-movement concept and the in-presence issue in its particular DMV implied-consent context. It **does not categorically bar proof of earlier driving by admission**, nor supersede Vehicle Code §40300.5. The officers had the driver's admitted prior travel. A lawful misdemeanor DUI arrest without witnessing driving still requires reasonable cause **and** an applicable statutory circumstance under §40300.5(a)–(e) (accident, vehicle obstructing roadway, flight/unavailability, threatened injury/property harm, or threatened destruction/concealment of evidence). Mere placement on a **shoulder** does not by itself establish §40300.5(b). Test every asserted alternative against grounded prearrest facts, not assumed scenarios.

Impairment observations: CHP reported an empty alcoholic can separately from the cup later identified as urine; the cup finding narrows—but does not eliminate—the alcohol-suspicion narrative. Its Answer admits no officer spoke odor or slurred-speech concerns aloud, not that no officer perceived odor or impairment (**M9–10, Answer ¶¶44–47**). HGN and Romberg descriptions require officer testimony/recording and, as appropriate, expert challenge. Fatigue or coherent responses are relevant but do not neutralize other evidence on their own.

PAS: *People v. Jackson* (2010) 189 Cal.App.4th 1461, 1465–1470 forbids using refusal of voluntary preliminary alcohol screening as **consciousness-of-guilt trial evidence**. It does not decide every prearrest reasonable-cause issue. Note specifically the pre-PAS advice and separate post-arrest implied-consent exchange (**M82–83**); avoid conflation. Refusal to assist **in a separate DUI investigation** also cannot automatically rebut helpfulness regarding alleged officer criminal restraint under §679.10(k)(3)(H).

Later evidence: blood 0.073 ± 0.004 at **02:38** is later than custody and does not permit ungrounded retrograde calculations; it does not defeat §23152(a) impairment allegations. The **02:34** blood warrant does not retrospectively create the grounds existing at arrest. An inactive THC metabolite alone is not proof of contemporaneous active THC impairment. The §851.6

certificate (see statute) is a detention-record classification and lack-of-accusatory-pleading context, not a judicial ruling of police criminality.

Earlier vehicle opening/parole: transcript places front door opening ~00:56:43, rear door ~00:59:46, and dispatch parole statement ~01:11:42, after cuffs (**M74–77, M82**). Do not infer officer private knowledge conclusively from the first audible dispatch statement; seek CAD/CLETS timestamps and testimony. *People v. Sanders* (2003) 31 Cal.4th 318 limits post-hoc search-condition rationale. Keep this under one paragraph for context unless it establishes an actual criminal-restraint stage. An unlawful **search** alone is not §236 certification.

8. Traditional mandate, standard of review and factfinding

Code Civ. Proc. §1085 gives a court jurisdiction to compel acts specially enjoined by law; §1086 requires a beneficial interest and no adequate plain, speedy ordinary remedy. CHP's admission of official status and refusal supports those threshold points. *Saleeby* explains that traditional mandate corrects abuse/excess of authority, though not how an official should exercise a genuinely lawful choice. *California Correctional Supervisors Organization* supplies a direct "only one reasonable choice" formulation. *Common Cause* 49 Cal.3d 432 is frequently invoked, but its **p.442** discussion predominantly addresses **preliminary injunction standards**; cite more precisely for the actual principle being invoked, rather than attributing every proposition to p.442.

Western States Petroleum Assn. 9 Cal.4th at **575–576** generally limits extra-record evidence in **quasi-legislative** traditional-mandate cases but expressly preserves admission for **ministerial/informal** administrative actions if facts are disputed. This was an individual certification determination, with no formal evidentiary hearing identified. The better procedural characterization is **informal individual administrative action**, subject to ordinary admissibility and judicial control; not an automatic license to relitigate everything or to defeat statutory privileges.

Under **§1094**, a petition may be decided by **noticed motion** if it presents **no triable fact issue** or is **based solely on an administrative record**. **§1091** permits proof to countervail the return/Answer. **§1090** gives the court discretion to send an essential factual question to a jury with specifically stated questions; **it does not require a jury** and should not be cited as automatic authority for any preferred bench-trial procedure. Request the court to manage contested evidence appropriately and expressly preserve other available civil factfinding procedures. Section **1088.5** deals with petition service proof; avoid characterizing it as a blanket certified-record requirement. A valid hearing setting, service and exhibits remain independent procedural prerequisites.

Retained jurisdiction and a verified compliance return are conventional, requested **judicial terms** to implement a granted writ; 30-day reconsideration and 45-day return are proposed compliance dates, not a claim CHP violated the original 30-day statutory processing deadline.

9. Evidence and authentication plan

First obtain the signed **April 20 denial** and exact **April 9 request package**, including the actual version of the transcript; CHP admits the **types** of attachments (**M2, M12**), not that the 15-page transcript reproduced at **M73–87** was the exact version received April 9. The latter

bears a **June 18, 2026 declaration**, a date after the denial (**M87**), so it cannot automatically be claimed to be the identical April submission. Produce both versions side-by-side if available, with their dates, hashes and any relevant textual differences.

Second request the original MVARS file(s) with CHP custodian certification, camera/time reference, metadata, hash and a testable court playback procedure. The provided PDFs **do not contain the native video**. The petitioner-written transcript is a useful demonstrative, not a substitute for original audiovisual evidence. **M73–87**. Confirm service/lodging beyond filing confirmation alone.

Third present clean, legible images/certified copies of Form 202 (**M42–46, AGO 000029–000033**), CAD (**M38–40, AGO 000022–000024**), shift sheets (**M67–68, AGO 000054/061**), lab/warrant (**M47–66**), and the Answer (**M1–19**). A lay declaration can authenticate receipt/own observations but not the forensic lab's scientific inference. Consider stipulating genuineness and limiting officer/custodian subpoenas to disputed matters.

Fourth seek decision-file evidence responsive to **RFP8 at M30–31** on a separate discovery track. The 15-entry privilege log (**M69–71**) must be treated as a list of assertions, not proof that their contents support either party. Challenge overbreadth or missing **nonprivileged** April materials by authorized procedure; do not insert speculative withheld-memo content in writ briefs.

Fifth inspect the original Aug. 29 signed demurrer order and entered Oct. 28 CMC order. Neither appears in these **two** uploaded source PDFs, although the motion recounts them. Confirm January 8, 2027 is **scheduled**, not only reserved. Keep the exact docket caption for filed parties; signature-name variations should be reconciled with court records and verified identification, without silently rewriting the case caption.

10. Opposition triage and plaintiff's responsive formulations

Expected CHP proposition	Best authority or proof	Response tailored to requested remedy	Relief tier
No power to compel discretionary choice	*Saleeby*; *California Correctional Supervisors Organization*	Discretion exists only within statutory parameters; direct mandate when all predicates proved, otherwise vacate and reconsider upon proven material error.	Both, conditional
A DUI investigation is not criminal false	§236; CALCRIM 1242; §40300.5; Form 202	Arrest was intentional; legality must be	Victimhood gate

Expected CHP proposition	Best authority or proof	Response tailored to requested remedy	Relief tier
imprisonment		established from reliable prearrest facts and applicable arrest authority—not from the DUI label.	
HGN, eye signs, can and prior driving suffice	Form 202, AGO 000030–000032; *Mercer* limitations	Separate earlier driving and §40300.5 exception; test whether the disputed FST account was materially necessary, without denying actual remaining indicators.	Factual hearing/remand; direct only if resolved
Walk-and-turn discrepancy collateral	Form 202 at M44 vs transcript M81	Do not count officer-aborted test as petitioner refusal; require a finding whether the erroneous statement materially affected custody inference and Serrato's threshold ruling.	Predominantly remand
Voluntary PAS can be used against petitioner	§23612; *Jackson*	Legislature provided PAS refusal right; cannot manufacture guilt solely from exercising it. *Jackson* is a trial evidentiary case, not a universal prearrest	Probable cause/credibility

Expected CHP proposition	Best authority or proof	Response tailored to requested remedy	Relief tier
		suppression ruling.	
Self-prepared transcript unverified	Evid. Code §§1400–1401, 1521; M73–87	Tender native video, custodian proof, hash, and demonstrative transcript conditioned on video controlling.	All tiers
Short denial sufficient	§679.10(i)(2)	Do **not** rely on length alone; identify a substantive material error once the factual predicate is established.	Remand only if proved
Extra-record evidence barred	*Western States* 9 Cal.4th 559, 575–576	The certification decision is informal individualized action, not quasi-legislative rulemaking; disputed material facts may be proved subject to evidentiary rules.	Factfinding
Helpfulness unproved	§679.10(g), (h), (k)(3)(H)	Present complaints, timely factual submissions and willingness; do not conflate DUI test refusal with assistance investigating officer restraint.	Both, after victimhood

Briefing rule: Include only material arguments CHP actually contests or facts that the judge must decide; an internal red-team matrix should **not** be copy-pasted into the opening brief.

Accurate adverse authority must not be misrepresented. Avoid unsupported claims of fraud, concealment, hostile intent, criminal conviction, or judicial no-probable-cause findings.

11. Authority audit (with controlling status and links)

Statutes (binding; verify current enactment before filing): Penal Code §679.10 (certification; (c), (d), (g), (h), (i)(2), (j), (k), (o)); §236 (false imprisonment); §146 (color-of-authority detention); §847(b) (**civil** immunity only); §851.6 (detention certificate); Veh. Code §40300.5 (five exceptions); Veh. Code §23612 (PAS and post-arrest implied-consent distinction); CCP §1085, §1086, §1088.5, §1090, §1091, §1094; Evid. Code §1521. Official portal URLs are included where accessible; public mirrors were used when the legislative portal blocked retrieval.

California Supreme Court (binding): *Saleeby v. State Bar* (1985) 39 Cal.3d 547, 560–563 — **strong** mandate/remand and reviewable procedure; do not pretend it requires a judicial opinion-length denial under §679.10. *Western States Petroleum Assn.* (1995) 9 Cal.4th 559, 575–576 — **strong but limited** informal-action exception to quasi-legislative extra-record bar. *Fermino v. Fedco* (1994) 7 Cal.4th 701, 715–716 — false imprisonment definitions, a civil/tort case also discussing Penal Code §236. *Mercer v. DMV* (1991) 53 Cal.3d 753, 768–769 — volitional movement; **narrow DMV/implied-consent procedural holding**, not absolute bar to proving DUI from circumstantial evidence. *People v. Sanders* (2003) 31 Cal.4th 318, 330–332 — after-acquired search condition cannot rescue earlier search. *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432 — mandamus/injunction context; **p.442 is primarily preliminary injunction discussion**; avoid using as primary support for "only one choice" doctrine.

Published California Courts of Appeal (binding at California superior-court level, absent contrary higher authority): *California Correctional Supervisors Organization* (2002) 96 Cal.App.4th 824, 827 — central discretion/sole-reasonable-choice rule; does **not** itself establish §679.10 victimhood. *People v. Jackson* (2010) 189 Cal.App.4th 1461, 1465–1470 — voluntary PAS refusal trial evidentiary prohibition; prearrest application distinguishable. *Espinoza v. Shiomoto* (2017) 10 Cal.App.5th 85, 101–103 — DMV implied consent/strong objective PC; principally useful as an internal adverse-fact reality check, not indispensable plaintiff briefing. **Do not use** *People v. Brock* (2006) 143 Cal.App.4th 1266 for officer false imprisonment; that is an unrelated elder-theft case. **Do not use** *California Correctional Peace Officers Assn. v. State* (2010) 181 Cal.App.4th 1454 for a universal post-hoc-rationalization bar; that opinion is about correctional compensation.

Judicial Council instruction (persuasive model of criminal elements): CALCRIM 1242 (2026) — misdemeanor §236; evaluate legality separately.

Federal regulation and authoritative guidance (binding federal framework / persuasive on California certification implementation): 8 C.F.R. §214.14 — definitions, certification, victim, helpfulness and USCIS role; USCIS U Visa Law Enforcement Resource Guide — federal certifier's role, does not award status. California Civil Rights Department U-visa guidance — current agency explanation of victimhood/helpfulness. **No directly controlling published California decision squarely requiring CHP to issue a §679.10 certification based on officer misconduct was verified in this research.** This is a

substantive litigation uncertainty. A comprehensive citator/negative-treatment service was **not** available; verify with Shepard's/KeyCite before filing.

12. Recommended revised motion structure and allocation

1. **Introduction / relief ladder (10%)** — statutory duty and April denial; ask for **conditional direct certification**, alternative vacatur/controlled remand, alternative focused factual proceedings.
2. **Admitted foundation and precise unresolved issues (15%)** — CHP authorized entity/official, request and denial, stationary welfare stop, compulsory custody, transcript status, Answer's limited admissions.
3. **Statutory victimhood and helpfulness (20%)** — §236/CALCRIM elements; §146(a) only if actual similar-elements analysis; statutory presumption; avoid reason-only dismissed count.
4. **Objective chronology and §40300.5 conditions (20%)** — prearrest vs postarrest, PAS vs chemical refusal, walk-and-turn, custody; define narrow fact questions.
5. **Decision-error nexus (20%)** — demonstrate why corrected facts make the qualifying rejection legally unsustainable; distinguish video credibility from proof of Serrato's relied-on grounds; RFP8 decision-file proof.
6. **Judgment and procedural alternatives (15%)** — sole lawful outcome if proved; otherwise a judgment tethered to actual material error; if necessary factfinding under §§1090–1094.

Cut or shorten: legal essays on entry/rear-door searches, hypothetical public-intoxication grounds not raised on this record, general maliciousness, arrest-warrant fraud rhetoric, "short denial = sham," post-incident blood retrograde guesses, and an adversarial case catalog. **Retain:** precise CHP admissions, §40300.5, limited *Jackson*, Form 202/video comparison, distinct refusal sequence, actual helpfulness proof and a concise request for verified return. The briefing must be truthful and not mischaracterize controlling adverse precedent; there is no obligation to draft the state's best hypotheticals for it.

13. Proposed essential findings—direct certification (only if the evidence warrants them)

A. "CHP is a certifying entity and its authorized official was requested to certify petitioner's Form I-918 Supplement B on April 9, 2026."

B. "Based on the admitted evidence, the Court finds that officers intentionally caused petitioner to be handcuffed, taken from the location and confined against his will, and that **no lawful arrest or other authority justified this specified custodial restraint** for the reasons set forth in Findings [numbered findings based on evidence]."

C. "This established restraint satisfies the statutory crime of false imprisonment within Penal Code §236 and qualifying activity within §679.10(c)(19), and petitioner was its direct victim."

D. "Petitioner possesses information concerning that activity and met §679.10(g)–(h) helpfulness; there is no supported finding that he refused or failed to provide reasonably requested assistance concerning that activity."

E. “The statutory certification conditions are satisfied and **no lawful evaluative choice remains**. CHP's April 20 denial cannot stand and the authorized official shall execute and deliver the certification in compliance with federal-form and state-law requirements.”

Caution: B and C are **not findings already established** merely by the present PDFs; do not submit a proposed signed order suggesting that they are. No finding of officer guilt beyond a reasonable doubt is requested.

14. Proposed essential findings—remand (on a lesser but still proved error)

A. The April 9 packet, statutory request, authorized official, and April 20 rejection are established.

B. The Court, after weighing specified authenticated evidence, finds **[identify the particular demonstrably incorrect and material factual assumption, wrong legal test, or legally impermissible reason actually proved]**.

C. The specified error was **material to CHP's legal assessment of qualifying activity**, taking account of otherwise supported circumstances; it is not merely an incidental typo or collateral inconsistency.

D. Because the April denial rests on that material error (or the result is legally untenable for the identified reason), its discretionary determination cannot stand under §1085.

E. Further lawful evaluation remains; vacate and reconsider consistently with those findings, without forcing a result the Court has not adjudicated. Where error is not proved, do not purport to issue remand merely to make the agency write more.

15. Proposed operative judgment-and-writ language—two noncompeting options

A. If court orders direct certification

JUDGMENT (proposed, conditional findings required): “Upon the Court's findings that Petitioner is a direct victim of the qualifying criminal activity of false imprisonment within Penal Code sections 236 and 679.10(c)(19), that Petitioner satisfies the helpfulness condition of section 679.10(g)(1) and (h), and that no lawful basis remains for declining certification, judgment is entered for Petitioner on the First Cause of Action. The April 20, 2026 denial is SET ASIDE. A peremptory writ shall issue commanding California Highway Patrol, acting through its authorized certifying official, within 30 days following service of the writ, to fully complete, execute and deliver Form I-918, Supplement B based on the November 1, 2024 qualifying criminal activity and the Court's findings, with truthful required form details. A verified return identifying compliance and attaching the executed form, subject to lawful confidentiality, shall be filed and served within 45 days of service. The Court retains jurisdiction to enforce compliance. This judgment does not itself confer immigration status or adjudicate any dismissed claim.”

WRIT (proposed): “YOU ARE COMMANDED to vacate the April 20, 2026 denial; execute and deliver the completed Form I-918, Supplement B in accordance with the Court's [date] judgment

no later than 30 days after service; and file and serve a verified return no later than 45 days after service. These periods are terms of the Court's order and do not declare a violation of the original statutory response period."

B. If court orders vacatur and controlled reconsideration

JUDGMENT (proposed, replace bracket with actually supported finding): "The Court finds that the April 20, 2026 decision materially erred by **[precise finding and evidentiary bases]**, and that this error affected the qualifying-criminal-activity determination under Penal Code section 679.10. Judgment is entered for Petitioner on the First Cause of Action to the extent of vacatur and remand. The April 20 denial is SET ASIDE. A peremptory writ shall direct CHP's authorized certifying official to reconsider the April 9 request within 30 days after service, using the statutory definitions in subdivisions (c) and (d), evaluating qualifying victimhood and helpfulness separately under subdivisions (g) and (h), not requiring prosecutorial action or relying on factors forbidden by subdivision (k), correcting **[specific error judicially determined]**, and issuing any denial consistently with subdivision (i)(2). CHP shall file and serve a verified return within 45 days. The Court retains jurisdiction to assess compliance, and does not order a particular certification result without the necessary findings."

WRIT (proposed): "YOU ARE COMMANDED to vacate the April 20, 2026 denial; reconsider and decide the April 9, 2026 request under Penal Code section 679.10 and the material findings and legal conclusions in the Court's judgment without repeating the adjudicated error; and file and serve a verified return with the decision within the deadlines in the judgment. This writ does not authorize the agency to ignore the Court's adjudicated findings and does not compel an unsupported ultimate result."

C. If essential facts require a hearing first

"Without adjudicating the ultimate writ entitlement at this time, the Court finds the following factual questions genuinely material: [numbered specific questions concerning walk-and-turn, remaining lawful-arrest facts and their relevance to the certification decision]. A case-management conference for the presentation of authenticated native recording(s), stipulated paper exhibits and narrowly identified testimony shall be set at [date]. The parties shall exchange witness/exhibit lists and present appropriate motions concerning authentication or privilege under separate procedures. The First Cause of Action remains for determination following the court's factfinding process."

Drafting guardrail: "30/45 days" are proposed; the court can set different periods. Do not insert proposed orders that make positive court findings not actually available from evidence. Serve proposed orders separately as local rules require.

16. Additional evidence needed, ranked by impact

1. **Native 00:55–01:12 MVARS with usable court playback**; authenticate timestamps, verbatim test refusal, speech and door events; preserve hash and provenance. **M73–87 provides petitioner text, not video.**
2. **April 9–20 decision file under RFP8**; what was considered, any criteria, what decision fact (if any) was materially false. RFP promises production but current record does not close the issue. **M30–31**.

3. **Original actual April submission transcript and signed denial**; distinguish later 15-page June-authenticated transcript from April attachment (**M87**).
4. **Officer observations/chronology** (through authenticated recordings, appropriate witnesses, or admissible stipulations) separating PAS and later chemical refusal; verify HGN/Romberg only within limits of scientific testimony.
5. **Precise §40300.5 grounds** based on roadside geometry, risk assertions, contemporaneous reports, officer recollection and real audio/video; include any actual obstruction evidence.
6. **Helpfulness proof**: dated CHP and POST complaint copies, acknowledgments, answers to investigative requests (if any), willingness declaration; do not use DUI test refusal as proxy for officer-offense helpfulness.
7. **Signed August 29 order, later CMC order, hearing proof**, and exact court-lodging/service status. Current uploads quote but omit the original August court order.
8. **Discovery response completeness**: see AGO 000022–000072 production map; preserve 15-entry privilege log and use separate motions for any deficiency or privilege challenge.

17. Prioritized revision checklist

- ☐ **Threshold:** confirm exact statutory subsections; stop using (g) as citation for denial-written-reasons; do not resurrect Count Two.
- ☐ **Factfinding:** introduce *CALCRIM 1242* element frame and evidence of actual custody; present §40300.5 exceptions without straw men.
- ☐ **New principal exhibit comparison:** Form 202 vs 01:10:23 walk-and-turn; Answer ¶38 vs 01:11 PAS / 01:15:54 chemical-test dialogue; label second as apparent mismatch pending verification.
- ☐ **Decision link:** expressly explain how each corrected fact changes qualifying victimhood and how any actual Serrato factual/standard error is proved; do not make a privileged-file inference.
- ☐ **Remedies:** reorder prayer per instructions—conditional direct certification, subordinate vacatur and controlled remand, fallback evidence determination; preserve findings necessary for each.
- ☐ **Authentication:** native recording, signed denial/request packet, correct transcript version, CHP report, Answer, declarations, proper service and exhibits.
- ☐ **Authority corrections:** *Jackson* accurately narrowed to trial guilt inference; *Mercer* to in-presence/context; *Common Cause* pinpoint; *Western States* quasi-legislative distinction; *Saleeby* scope; no unrelated *Brock* / compensation cases.
- ☐ **Procedural:** confirm Jan. 8 merits setting and briefing schedule, no placeholder dates; verified declaration fact by fact; signed nonparty proof of service; separate proposed judgment/writ; inspect local and department rules.
- ☐ **Before submitting:** verify each adverse-and-favorable opinion's later treatment with legal citator; the public-web search is not Shepard's or KeyCite.

Executive conclusion for briefing team

The strongest **proved** initial elements are CHP's certifying status, timely request/denial, intentional confinement and direct firsthand victim claim, a well-defined §236 qualifying offense, and evidence of helpfulness. The unresolved element is **lack of lawful privilege for custody**—with a second unresolved link to the **particular certification error** that supposedly followed. The specific walk-and-turn contradiction is legally useful, and the apparent PAS-versus-chemical chronology conflict is newly highlighted, but neither automatically invalidates all remaining grounds for arrest or establishes what Serrato considered. **Direct certification is an available legal objective conditioned on additional findings; vacatur and controlled remand are legally grounded fallback remedies only after the Court finds material error or abuse.**